

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2022-CC-004105

JEANIE GRACE DICICCO,
HOWARD VINCENT BLACKWELL
and ANY UNKNOWN TENANT(s),
Defendants.

REPLY TO AFFIRMATIVE DEFENSES

First Affirmative Defense

Defendant's First Affirmative Defense is not an affirmative defense and is merely a denial of the Plaintiff's eviction which is justified by Fla. Stat. 723.061(1)(C)(2) because Defendants violated Park Rules, gave Defendants lawful opportunity to comply with the rules and commenced this eviction of the Defendants.

Second Affirmative Defense

Defendant denies the allegations of the Defendant's Second Affirmative Defense. It is without factual merit or support.

Third Affirmative Defense

Defendant's Third Affirmative Defense is without factual merit or support. The Plaintiff denies that the first affirmative defense constitutes a legal defense to this cause. It is legally insufficient because it fails to allege any facts that would give rise to an affirmative defense pursuant to Fla. Stat. §723.0615.

Fourth Affirmative Defense

Defendant's Fourth Affirmative Defense is without factual merit or support. The Plaintiff denies that the Defendants have alleged substantive or procedural unconscionability. Unconscionability is a defense to a contract in its formation, either because of the contract's substance or the procedure applied in the formation of the contract. Tampa HCP, LLC v. Bachor, 72 So. 3d 323 (Fla. 2d DCA 2011).

Fifth Affirmative Defense

Defendant's Fifth Affirmative Defense is without factual merit or legal support. The Plaintiff denies that the fifth affirmative defense constitutes a legal defense to this cause. It denies that whether a management company changes gives rise to enforcement of the Prospectus and Rules of Plaintiff's mobile home park constitutes a defense to violation of the rules by the Defendants.

Sixth Affirmative Defense

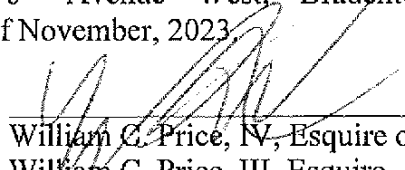
Defendant's Sixth Affirmative Defense is without factual merit. The Plaintiff denies that the facts alleged in the Sixth affirmative defense constitutes a legal defense to the cause of action. Selective enforcement is a constitutional equal protection claim. Defendants have not alleged an equal protection claim, that they are entitled to some particular equal protection from which they have been deprived, or the basis for any arbitrary enforcement of the Rules that prohibit persons under the age of 40 from residing in the mobile home park. Powell v. City of Sarasota, 953 So. 2d 5 (Fla. 2d DCA 2006).

Seventh Affirmative Defense

Defendant's Seventh Affirmative Defense is without factual merit or support. The Plaintiff denies that the Seventh affirmative defense constitutes a legal defense to this cause. Chapter 680 of Florida Statutes applies to commercial leases and terms between commercial parties. It appears from the facts claimed that Plaintiff allowed an individual who qualified for residence in the park to also allow a disabled son to reside in the park with her, on the basis that the elderly person was the caretaker for the disabled son. Defendants DiCiccio were approved, but neither dogs nor children were approved. Enforcing park rules which prohibit children residing in the park, and rules which prohibit unauthorized animals from residing in the park, and prohibiting dogs running loose in the park, is not unconscionable, nor the basis for the claim of waiver.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Reply to Affirmative Defenses has been furnished in accordance with Florida Rule of Judicial Administration 2.516 to Christopher M. Hittel, Esquire, 333 6th Avenue West, Bradenton, FL 34205, at service@hittellaw.com and on this 2nd day of November, 2023.


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